

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkQowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

PAUL LAMIN STEWART,

Petitioner

VS.

TATJANA NEREU,

Respondent

) Case Number: FPT-23-378171

) Hearing Date: May 26, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF REQUEST FOR ORDER OF CHANGE OF VISITATION
TENTATIVE RULING

The parties are ordered to appear via Zoom or in person at 9AM on 5/26/2026 in Department 404.

If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Paul Stewart (Father) and Tatjana Nereu (Mother) have one minor child together, Sekou (DOB 10/24/2021, age 5). The parties have shared joint legal and physical custody of Sekou pursuant to this Court's 12/17/2024 Statement of Decision. A Findings and Order After Hearing filed 9/29/2025 sets forth the parties' current parenting time schedule, which includes a regular week-on, week-off schedule and a holiday schedule. Father lives in San Francisco; Mother lived in Sacramento and recently moved to Oakland.
- 2) On 2/24/2026, Mother filed a request for an order for: (1) Sekou to attend Lincoln Elementary School in Oakland starting with Transitional Kindergarten (T-K) for the 2026-2027 school year; (2) Sekou to live with Mother during the school week starting this fall and through each school

1 year; (3) a parenting time schedule that accommodates this school choice; and (4) an evidentiary
2 hearing.

3 3) On 3/26/2026, Father filed a responsive declaration opposing Mother's request. He seeks an order
4 permitting Sekou to remain at Rocky Mountain Participation Nursery School, where he says
5 Sekou is doing well and has "developed routines, friendships, and familiarity with the teachers
6 and classroom environment," or an order allowing him to enroll Sekou in a T-K school in San
7 Francisco.

8 4) On 5/11/2026, Father filed a supplemental declaration providing the Court with an update after
9 the parties attended mediation that Mother appears to be requesting a 2-2-3 parenting schedule
10 instead of a week-on, week-off schedule. He states this schedule would not permit him to
11 maintain his current employment. He also opposes Mother's request to have sole or primary
12 medical decision-making authority. He requests that the Court "maintain the current custodial
13 arrangement pending further mediation and/or evidentiary hearing and deny Mother's request to
14 designate herself as the 'school parent.' " He states, "If the Court is inclined to substantially
15 modify the current custodial structure or rule in Mother's favor, I respectfully request that a full
16 custody evaluation be completed before any final modification of the existing status quo."

17 5) On 5/18/2026, Mother filed a reply declaration in which she states that Father's act of enrolling
18 Sekou in a T-K program in San Francisco shows that he agrees to have Sekou enroll in T-K;
19 "[t]hus, the only remaining issue is which TK program is most suitable for Sekou." She opposes
20 Father's request for the parties to continue coparenting counseling, as she believes it is no longer
21 an effective method for the parties to work through the current issues, such as therapy for Sekou.
22 She asks that the parties attend co-parenting mediation, and that "if the Court determines that
23 mediation is not the best path forward," the parties should "engage a Parenting Coordinator (PC)
24 to help navigate our recurring issues." She asks for an order for the parties to use an app like Our
25 Family Wizard for all non-emergency communications. She reiterates her request for Sekou to
26 attend T-K in Oakland.

27 6) In addition to the above filings, both parties have filed memoranda of points and authorities in
28 support of their respective requests. Father states that Mother's request constitutes a move-away
29

request to which the factors set forth in *In re Marriage of La Musga* (2006) 32 Cal.4th 1072 apply; Mother disagrees.

B. Findings and Orders

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor children is the United States.

2) **The parties are ordered to appear in person or via Zoom video at 9AM on 5/26/2026 in Department 404.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARVAUGHN FAULKNER,

Petitioner

VS.

ALEXYA ROSE,

Respondent

) Case Number: FLD-21-396875

) Hearing Date: May 26, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Marvaughn Faulkner (Father) and Respondent Alexya Rose (Mother) have one child together, Josiah (DOB 12/8/2019, age 6).
- 2) On 8/25/21, the parties agreed in their related juvenile dependency case that Father would have sole legal and physical custody of Josiah and that Mother would have supervised visits through a visitation center. On 10/29/2021, final judgment was entered in the dependency case incorporating the parties' agreement and awarding Mother a minimum of one-hour supervised visits per week. The Court found Mother had not made substantial progress with anger management training, parenting classes, or individual counseling and had not consistently visited Josiah nor maintained a safe and stable environment.
- 3) Since then, Mother has sought, and the Court has denied her request for, sole legal and physical custody.
- 4) On 6/6/2025, Mother filed a request for unsupervised parenting time and provided the Court with evidence of progress she has made. In a Findings and Order After Hearing filed 10/3/2025, this

1 Court ordered that Mother shall have parenting time with Josiah every Friday and Saturday from
2 1pm to 3pm, to be supervised by Josiah's maternal grandmother. The Court ordered that before
3 visitation begins, the grandmother must file with the Court a Declaration of Supervised Visitation
4 Provider (NonProfessional) (FL-324(NP)) confirming the maternal grandmother's qualifications.
5 The Court scheduled a review hearing for 3/24/2026.

- 6 5) On 3/11/2026, Mother filed an update declaration in which she states that Father has not allowed
7 her to see Josiah. She does not state whether the maternal grandmother filed the required form
8 with the Court. She seeks unsupervised parenting time with Josiah from Friday after school to
9 Sunday at 5pm.
- 10 6) Both parties appeared at a hearing on 3/24/2026 and provided sworn testimony. The Court
11 ordered one hour of weekly supervised visits for Mother through Rally Family Visitation Services
12 (Rally). The Court ordered the parties to contact Rally to complete their intake and ordered Father
13 to submit to Room 402 paperwork proving his representation that his mother has guardianship
14 over Josiah. The Court set a review hearing for 5/26/2026 at 9AM in Department 404 and ordered
15 the parties to file and serve update declarations at least 10 days before the review hearing.
- 16 7) Neither party has submitted an update declaration.

17 **B. Findings and Orders**

- 18 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
19 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
20 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
21 child is the United States.
- 22 2) The Court finds it is in Josiah's best interest to maintain the current custody and parenting time
23 order. If the parties have not yet done so, they shall complete their intake with Rally on or before
24 5/29/2026 so that visits may begin as soon as possible.
- 25 3) No appearances are required at the 5/26/2026 hearing because the Rally visits have not yet begun.
26 This matter is continued to **Thursday, 9/3/2026 at 9:00 AM in Dept. 404**. At least 10 days
27 before the review hearing, the parties shall file and serve brief update declarations informing the
28 Court how the Rally visits have been going.
- 29 4) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CHRISTOPHER MARSH,

Petitioner

VS.

VESNA MARSH,

Respondent

) Case Number: FDI-15-783933

) Hearing Date: May 26, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: ENFORCE JUDGMENT RE AVIVA UK PENSION(S)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

1) Petitioner Christopher Marsh (Husband) and Respondent Vesna Marsh (Wife) entered into a Stipulated Judgment which was filed on 11/24/2021. Both parties are currently self-represented.

2) Paragraph 3(G) of the Stipulated Judgment filed on 11/24/2021 provides in relevant part:

a. "Vesna is awarded the following retirement accounts and all funds held therein: Aviva/Tk Account xxx-8658, and...Aviva/Tk Account xxx-1899. The accounts are currently in Chris' name. The parties will meet and confer and work together in preparing the necessary documents for the accounts to be transferred to Vesna's name. The cost of preparation of any documents necessary to effectuate the transfer shall be split 50/50 between the parties."

3) No substantive pleadings were filed in this matter since entry of Judgment until Wife filed the instant Request for Order on 3/13/2026. Wife states that Aviva, which is a United Kingdom pension entity, has informed Wife that it requires an England and Wales pension sharing order before it can transfer the Aviva accounts into Wife's name. Wife states that at the time of

1 settlement, she agreed to accept Husband's Aviva UK pension interests because she "understood
2 their value to be roughly equivalent to a premarital gift from my parents that was at issue in the
3 settlement discussions" but she "did not then understand the later implementation problems
4 associated with transferring those pension interests under United Kingdom rules." Wife states she
5 has attempted to work with Husband regarding these issues but he has not been cooperative and
6 he has failed to sign a Letter of Authority to authorize her to obtain plan-specific information
7 from Aviva directly. Wife asks the Court to:

- 8 a. Order Husband to cooperate in providing information and authorizations necessary for
9 valuation, including ordering Husband to sign any reasonable authorization or other
10 document necessary to obtain information from Aviva or to carry out any other order the
11 Court makes regarding valuation and enforcement;
 - 12 b. Award Wife an equalizing offset from other property or assets if direct transfer of the
13 Aviva pension interests cannot be completed; and
 - 14 c. Reserve jurisdiction to make any additional orders necessary to effectuate the Judgment
15 and achieve an equal division of the community property awarded by the Judgment.
- 16 4) Per the Proof of Service filed 4/24/2026, Wife's Request for Order, blank Responsive
17 Declaration, and the Tentative Ruling Instructions were personally served on Husband on
18 4/3/2026.
- 19 5) Husband did not file a Responsive Declaration.

20 **B. Findings and Order**

- 21 1) Wife shall draft a Letter of Authority which authorizes Wife to obtain information regarding
22 Aviva/Tk Account xxx-8658 and Aviva/Tk Account xxx-1899 directly from Aviva. The Letter of
23 Authority shall contain the information outlined by the Aviva Customer Services Representative
24 in Wife's Exhibit E.
- 25 2) Within 48 hours of being presented with the Letter of Authority drafted by Wife, Husband shall
26 sign and date the letter and return the letter to Wife.
- 27 3) Husband shall forthwith investigate what he can do to have Aviva/Tk Account xxx-8658 and
28 Aviva/Tk Account xxx-1899 transferred into Wife's name and take any steps necessary to
29 effectuate those transfers.

- 1 4) A review hearing is set for **Tuesday, 8/4/2026 at 9:00 AM in Dept. 404** for the Court to review
2 Husband's compliance with the orders set forth above and for the Court to consider Wife's
3 request to award Wife an equalizing offset from Husband's other property or assets if direct
4 transfer of the Aviva pension interests cannot be completed.
- 5 5) At least 30 calendar days prior to the next hearing date, Husband shall file and serve a declaration
6 which explains: (a) what efforts he has taken to date to have Aviva/Tk Account xxx-8658 and
7 Aviva/Tk Account xxx-1899 transferred into Wife's name; (b) what is the current value of
8 Aviva/Tk Account xxx-8658 and Aviva/Tk Account xxx-1899 (Husband shall also attach
9 documentary evidence supporting these values); and (c) what other assets he has that are
10 equivalent in value to Aviva/Tk Account xxx-8658 and Aviva/Tk Account xxx-1899 that can be
11 transferred to Wife in lieu of the Aviva accounts.
- 12 6) At least 10 calendar days prior to the next hearing date, Wife shall file and serve a declaration
13 providing any material updates related to her 3/13/2026 Request for Order.
- 14 7) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

BRIAN RISLEY-O'ROURKE,	)	Case Number: FDI-20-793149
Petitioner	)	Hearing Date: May 26, 2026
VS.	)	Hearing Time: 9:00 AM
KOURTNEY WILLIAMS,	)	Department: 404
Respondent	)	Presiding: AI MORI

REQUEST FOR ORDER RE: ISSUE, EVIDENCE, AND MONETARY SANCTIONS AND
IMMEDIATE PAYMENT OF PREVIOUSLY ORDERED ATTORNEY FEES SANCTIONS

TENTATIVE RULING

On the Court’s own motion, to provide the Court with additional time to review the pleadings, the hearing on Petitioner’s Request for Order filed 3/3/2026 is hereby continued to **Tuesday, 7/28/2026 at 9:00 AM in Dept. 404.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DJUNA BABIERA REILLY,

Petitioner

VS.

BRENDAN CLIFFORD REILLY,

Respondent

) Case Number: FDI-21-795069

) Hearing Date: May 26, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear via Zoom or in person at 11AM on 5/26/2026 in Department 404.

If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Djuna Babiera Reilly (Mother) and Respondent Brendan Clifford Reilly (Father) share twin minor children, Esperanza Babiera Reilly (DOB 6/1/2018, age 7), and Julieta Babiera Reilly (DOB 6/1/2018, age 7).
- 2) On 6/17/2021, Mother filed a Petition for Legal Separation. On 5/4/2022, a Stipulation and Order was filed in which the parties agreed to share joint legal and joint physical custody of the minor children, with a 50/50 parenting schedule. On 3/2/2023, a Judgment of Legal Separation was entered, with the 5/4/2022 Stipulation and Order becoming a part of the Judgment.
- 3) On 9/8/25, Mother filed a request for change in custody, seeking an order appointing her as the primary educational decision maker “due to disagreements between me and Father regarding what’s best for the girls.” Based on a review of the parties’ pleadings and exhibits that were filed

1 and lodged with the Court, sworn testimony from the parties, and argument from counsel, the
2 Court found it was in the children's best interests for the parties to continue sharing legal custody.
3 The Court ordered the parties to enroll in coparenting counseling and to attend at least 5 sessions
4 to address the children's school and Individualized Education Programs (IEPs), with the costs to
5 be split equally between them. The Court set a review hearing for 5/26/2026 at 9AM in
6 Department 404 and ordered the parties to file and serve update declaration by 5/15/2026.

- 7 4) Both parties filed update declarations on 5/15/2026. Mother asks for an order requiring the parties
8 to apply for financial aid at Charles Armstrong School, "a leading Bay Area school specializing
9 in teaching students with language-based learning differences, such as dyslexia; and that the
10 Court order the parties to cooperate with any application-related requirements from Charles
11 Armstrong, such as 'shadow day.' " She asks that a review hearing be set for August on school
12 choice. She states that since the last hearing, the parties have jointly decided to remove the
13 children from the Spanish Immersion Program at the current school, Daniel Webster Elementary
14 School, to place them in the General Education Program at the same school, to have the children
15 attend Charles Armstrong School's summer program, and to hire an "education lawyer to seek
16 compensatory services from the SFUSD for their lack of compliance with the girls' IEPs." She
17 sets forth the reasons she believes Charles Armstrong School is a good option for the children.
18 Father states that the parties were coparenting reasonably well until August 2025, when Mother
19 "suddenly proposed sweeping, sudden changes to our daughters' educational landscape due to our
20 daughters' reading and writing challenges." Father states the children love their community at
21 their current school and opposes Mother's proposal to move the children to Charles Armstrong
22 School, which is located in Belmont. "Additionally, with the recent hiring of RSP teacher Ms.
23 Garcia . . . there is no argument here that our children are not receiving the appropriate education,
24 or that SFUSD is ill-equipped to navigate the complexities of providing support for children with
25 diverse learning differences like our daughters have." He states he takes issue with Mother's
26 "major flip-flop" from her contention last December that she was no longer considering Charles
27 Armstrong School, to her current position, which he states "would create immense imposition,
28 and parenting time interference on a large scale for dad," which will cause the children to "lose
29

1 considerable amounts of quality-specific time with both parents, and certainly experience more
2 loss of time with dad considering his contract-specific educator workplace requirements.”

3 **B. Findings and Orders**

4 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
5 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
6 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
7 children is the United States.

8 2) **The parties are ordered to appear in person or via Zoom video at 11AM on 5/26/2026 in**
9 **Department 404.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MIN YUAN ("JOANNE") LIN,

Petitioner

VS.

WING KWONG QUOCK,

Respondent

) Case Number: FDI-23-797584

) Hearing Date: May 26, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: AUTHORIZATION TO TRAVEL INTERNATIONALLY AND APPLY
& OBTAIN CURRENT PASSPORTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

- 1) The hearing on Mother's Request for Order filed 4/14/2026 seeking authorization to apply for and obtain passports for the parties' minor children and for authorization to travel internationally with the children was erroneously not first set on the readiness calendar.
- 2) The parties are ordered to attend mediation with FCS mediator Juanita Quintero on **Tuesday, 6/23/2026 at 9:00 AM.**
- 3) A future hearing date for Mother's Request for Order filed 4/14/2026 is set for **Tuesday, 7/7/2026 at 9:00 AM in Dept. 404** in the event the parties do not reach a full agreement in mediation.
- 4) Mother's attorney shall prepare the Findings and Order After Hearing.
- 5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other

1 party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court,
2 Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RAJ KUNAR GURUNG,

Petitioner

VS.

LAKSHMI GURUNG,

Respondent

) Case Number: FDI-23-798275

) Hearing Date: May 26, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER SPECIFIC RELIEF: FRINDING THAT JX IS PROPER IN CA AND COURT
PERMITS THE FILING AND ENTRY OF JUDGEMENT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

1) The parties in this matter are Raj Gurung (Husband) and Lakshmi Gurung (Wife). Husband states
the parties married on 5/4/1997 and separated on 3/4/2018, for a marriage of 20 years and 10
months. Wife has filed no pleadings in this matter to date.

2) Case No. FDI-20-793986

a. On 10/9/2020, in related Case No. FDI-20-793986, Husband filed a Petition for
Dissolution.

b. On 11/12/2020, Wife filed a Motion to Quash the proceedings on the grounds that there
was a concurrently pending divorce action in Nepal.

c. Husband did not file a Responsive Declaration to Wife's request to quash the
proceedings.

d. On 2/25/2021, following a hearing, Judge Evangelista granted Wife's motion to quash the
proceedings and dismissed the proceedings.

1 3) Case No. FDI-23-798275

- 2 a. On 6/30/2023, Husband filed a new Petition for Dissolution.
- 3 b. Per the Proof of Service of Summons filed 7/10/2023, the Petition and Summons were
- 4 personally served on Wife on 7/7/2023.
- 5 c. On 10/31/2025, after Wife failed to file a Response to the Petition, Wife's default was
- 6 entered.
- 7 d. On 8/25/2025, Husband submitted a proposed True Default Judgment for the Court's
- 8 review.
- 9 e. On 1/15/2026, the Court rejected Husband's proposed True Default Judgment, stating, "If
- 10 you wish for this Court to enter your proposed dissolution Judgment, you must file and
- 11 serve a Request for Order and show good cause [why] this Court has jurisdiction to enter
- 12 this Judgment despite the finding made in Case No. FDI-20-793986 that Nepal has
- 13 jurisdiction."
- 14 f. On 4/1/2026, Husband filed a Request for Order asking the Court to make a finding that
- 15 California has jurisdiction to make orders in the parties' divorce case and to permit the
- 16 filing and entry of Judgment in this matter. Husband states that the Nepalese case was
- 17 dismissed on 11/4/2020 due to lack of prosecution. Husband attached to his Request for
- 18 Order what he deems a "true and correct copy of the Nepalese Dismissals Verdict with
- 19 English translation, issued November 4, 2020." Husband also notes that both parties have
- 20 lived in California since 2014 and continue to live in California today.
- 21 g. Per the Proof of Service filed 4/6/2026, Husband's Request for Order was mailed to Wife
- 22 on 4/1/2026.
- 23 h. Wife did not file a Responsive Declaration.

24 **B. Findings and Order**

- 25 1) Based on Husband's representation that the prior Nepalese dissolution case has been dismissed,
- 26 the Court finds that Superior Court of California has jurisdiction to make orders in the parties'
- 27 dissolution matter.
- 28 2) Husband may resubmit his proposed Judgment packet for the Court's review.
- 29 3) The Court will prepare the Findings and Order After Hearing.